SUBJECT TO BRAIN STORMS

(Continued from Page 2)

said 'Let there be light' and there was light. I got the light somewhere; I don't know where.

"My head was all in a whirl. Everywhere I went I saw a scripture text. The voice said 'I am the door.' And I heard the voice. It was like that my mother used when she called me as a child. It said 'Suffer little children to come unto me,' I said 'They are coming, Lord. Quickly they are coming.'

"Then you killed all of them?" Kelly was asked.

"Yes, I did," was the response. "The children had to go first. The Lord said spare neither sheep, animals or anything. I went down stairs and was tired and wanted to sleep. I think I killed two more down stairs. I had to do just as God wanted me to do.

"Something happened to me that night; I cannot explain. When I burned the buildings in Sutton, Neb., I was making a clean sweep for Christ. Christ is the son of God; I thought I was the grandson of God. I am ready to do it again. I did not remember anything about the Villisca murders until Tuesday. I cannot recall what I did with that shirt.

"Every where I went people said I was insane. I am telling you gentlemen what I believe to be true. If it is a delusion, I cannot help it. I was so crazy I did not know what I was doing. Remember I am subject to delusions.

"I believe Judge Sutton and Mitchell will go back on me. They said if I committed this crime, I was insane. The truth in a nut shell is I was insane that night. I remember slaying with that ax. It seems I did not know anything about it until it was all over. Then I remembered something had happened to me. It was like walking in my sleep. The Lord commanded me to slay utterly. And the Lord said 'More work for my servant yet.' And I killed the two down stairs. After these people had been killed I thought I was a detective. I thought I was connected with Scotland Yards and the Burns agency."

"Kelly, you should go over there where the grand jury is in session and tell them what you have told us," Attorney Havner is reported to have injected. "A lot of people think Jones did this. You don't want to see an innocent man suffer, do you?"

"This may be a delusion," Kelly said. "I know this is not a delusion that I killed them.

"You have all been kind to me. But I have been insane for five years. I was living only on $400 a year and that started me insane. And my books helped to start me insane. Something happened that night I never will be able to explain. I was unbalanced before that, but I never did hurt anyone. I don't ask for liberty; I want to be taken care of. Oh God! Oh God! I am the insane man who killed them. As long as that voice continued to say 'Slay Utterly.' I just had to slay."

"What about Wilkerson?" the attorney asked. "Are you afraid of Wilkerson?"

"No, not exactly," Kelly answered. "Suppose I never was at Ewing's house. I told Wilkerson I was innocent. All I know is that I am insane. People say that I am out of my head. Sutton people say it; Macedonia people say it. I don't know what I have been saying. I can hear my voice, but I don't know what I have been saying. Mr. Wilkerson believes some one else did it. He has a right to his opinion. I may have told Wilkerson that I lost my reason that night.

"You are going to kill me. Oh God! Mr. Havner, I did not know those people. All I ask of you is to take care of me in an asylum. Listen here, men. Oh God! Oh God! I have told the truth. Look at my mental shape. I have not a single lawyer to take care of me."

"Do you want us to leave you alone, so you can go back to your lawyers?" Kelly was asked.

He continued. "Wilkerson did not do me any harm. Take me and kill me. Oh men, take me and kill me. I have been suffering for five years. They tell me they are going to vindicate me. They say I did not leave the house that night.

"I am at the mercy of the attorney general of Iowa. If Judge Sutton was here he would help me."

"Now tell us what you told Mr. Atkins about Wilkerson," Attorney Hess urged.

"All Wilkerson did was to go and get my stuff," Kelly replied. "Wilkerson said something about putting me in an insane asylum. When my attorneys came they said the only thing for me to do was to go back and face the trial. Wilkerson paid my railroad fare and hotel bills while Mrs. Kelly and myself were with him in St. Louis and Chicago. I never could understand why Wilkerson was paying my expenses like that. I simply cannot understand it. Wilkerson said he would not let them get a hold of an insane man. We went to Red Oak from Chicago. Sutton and McKenzie came back with us. My expenses were paid. I had no money. A preacher never has any money. My lawyers told me I was insane. I have not talked to Wilkerson since I was placed in jail.

"I thought that night I was going to preach a sermon. I did not want to hurt any one. I did not know I was going to hurt these people."

Mr. Ferguson declared that Kelly was dressed in an old suit of clothes the night he took this statement; that he was wearing no collar and appeared to be in a very nervous state of mind. The witness heard Kelly sobbing once while he was taking his notes. His speech was low at times and again it was loud as though he was excited. The witness said he finished taking his notes about 5 o'clock, left Logan immediately and took breakfast in Missouri Valley. He said he left in an automobile with Mr. Hess and Mr. Havner.

"I would say Kelly was rather nutty," said Mr. Ferguson in response to a question from Attonery Mitchell asking for an opinion as to the prisoner's mental condition. Asked what he meant by "nutty," the witness said he did not know whether or not Kelly was of sound or unsound mind. Mr. Ferguson said the report he had read to the jury contained every word that was spoken while he was in the room.

State Senator W C. Ratcliff of Red Oak, and county attorney for Montgomery county in 1912, was called and asked regarding a visit he had made to Kelly while the latter was in jail in Sioux Falls during 1914. "It was in April, 1914," said the witness. "The prisoner was dressed in an old, unkempt suit. He wore no collar and appeared in a nervous and excited state of mind. His hair was long and there was a heavy growth of beard on his face. He was not at ease and continually moved his hands and body in a nervous manner."

"What did Kelly say to you about detectives," the witness was asked by Attorney Mitchell.

"He said detectives, particularly Mr Longnecker, had been hounding him day and night," replied Senator Ratcliff. "He said he had been driven almost crazy. Kelly told me that he had complained to the attorney general's office about this." Senator Ratcliff said the defendant seemed to breathe with difficulty; that his breath came as though with a painful effort.

Mr. Ratcliff declared he thought the prosiner decidedly was of unsound mind

The witness was not cross examined by the state.

O. E. Jackson of Norwich, Ia., who was sheriff of Montgomery county during 1912-14, and who went with Senator Ratcliff to see Kelly in the Sioux Falls jail, corroborated the testimony of the former county attorney. He too, believed Kelly then was of unsound mind.

Miss Fannie Longman of Logan, Ia., was the next witness called. She said that she lived in Logan and had been a stenographer for ten years. The witness declared she met Mr. Havner and Mr. Hess on the night of August 30, 1917. She also was introduced to Mr. Risden at the same time. Miss Longman said she was called to the court house about midnight. The witness produced a transcript of her notes, which were said purported to be a report of what was said at a meeting in Sheriff Myers office between Attorney General Havner, Attorney Hess, Mr. Risden, Sheriff Myers, Deputy Sheriff Atkins and Kelly.

Attorney Mitchell declared he would like to have an opportunity of reading the transcript before questioning the witness and Miss Longman was excused until tomorrow morning.

Charles Bachelor of Council Biuffs, who was present when Kelly was being questioned in the Logan jail by Sheriff Myers, Deputy Sheriff Atkins and State Agent Risden, took the stand as a witness for the defense.

Bachelor said he was taken to the jail handcuffed to Lahman of Missouri Valley. He said he was told that Kelly was afraid of detectives and he had been asked to be present when the prisoner was to hear read some additional evidence said to have been secured against him. Bachelor corroborated the testimony submitted by Mr. Lahman yesterday.

Tuesday Afternoon

J. H. Horton, marshal at Villisca, who was the first person to go through the Moore residence following the discovery of the murders, took the stand and declared that he noticed a bloodstain on one of the Stillinger girls limbs. "It looked like it had been made by a man's hand stained with blood," said witness. Cross examined by Attorney Mitchell, Mr. Horton said he would not be positive as to whether or not the stain had been made by a hand. It only looked like it, he said.

W. G. Riley, at one time sheriff of Minnehaha county, S. D., now a banker of Sioux Falls, said he had known Kelly while the prisoner was incarcerated in the Sioux Falls jail, and heard him confess that he was the murderer of the Joe Moore family and the two Stillinger girls. "It was on the day following the visit of the sheriff and county attorney of Montgomery county," said the witness. "I told the prisoner that the two gentlemen were there to see him," continued the witness. "'I killed them,' Kelly said to me, 'but they don't know it. Who did you say that man was that called yesterday?' I told him that it was the sheriff from Red Oak and he came to see you about the Villisca ax murder. 'How does he know I killed them?' Kelly asked me?" Sheriff Riley said he later wrote Sheriff Jackson of Montgomery county regarding the conversation he had with Kelly.

On cross examination, the witness said that Kelly sent for him and was seated in his office when this conversation took place. He had been taken to the office by a deputy sheriff, to whom the prisoner had been talking.

Paul E. Roadifer, county attorney of Harrison county, declared he had seen Kelly only twice. The first time, he said, was in the jail window and the second time was in the sheriff's office August 31, 1917. "Mr. Myers, the Sheriff, called me up between 5:30 and 6 o'clock in the morning and asked me to come to his office. Kelly was there when I arrived and Mr. Risden told me Kelly wanted to confess to the Villisca ax murders," the witness continued. "I turned to the prisoner and asked him if this was true. He said it was and I sat down to a typewriter and Kelly sat down opposite me. I asked him if any promises or threats had been made in order to get him to make a confession, and he said there had not. I then wrote a statement to the effect that there had not been any promises or threats made and that the prisoner was making the confession voluntarily. I asked him if that was all right and he replied that it was. Kelly then started to dictate the statement word for word. I then told Mr Risden to call a notary public and he called Lyn J Irwin, clerk of the court. Mr. Irwin arrived in about fifteen minutes and asked Kelly if he wanted the statement read to him, Kelly replied that he did not; that he had dictated it and knew it was true.

"Kelly signed the statement of his own free will. He was sworn and Mr. Irwin took his acknowledgement. The prisoner then made a statement in regard to some fires in Sutton, Neb.," said the witness.

Attorney Mitchell asked that the confession should not be admitted to the record until the defense had had an opportunity to present their side of the confession. The motion was overruled by the court.

The witness said on cross examination that he did not see the attorney general or Mr. Hess in the court house while Kelly was there. He said he saw them later, however. Witness said he did not interrupt Kelly but twice when he was dictating the statement. Then all I said was "Go ahead, you are getting it in good shape." Mr. Roadifer said he made no suggestion as to the language in the confession except in the first paragraph, which he wrote and read to Kelly, who approved it. The witness said he saw Kelly taken away from the court house about 7:15 or 7:30 o'clock, and later admitted that it might have been 8 o'clock.

Kelly's Confession

At this point Attorney F. F. Faville read the confession into the record. The statement follows:

"State of Iowa, Harrison county, ss.

"I Lyn George J. Kelly, being first duly sworn on oath depose and say that I make the following affidavit and confession without any promise or threat having been made to me of any kind whatever, and that this is a voluntary statement.

"That I came to Villisca, Ia., the night before the murder of the Moore family.

"Lou Enarson met me at the depot and I went to his home for supper. I was taken from there to Henry Enarson's by Lou Enarson, where I stayed over night and I returned to Villisca at 6:30 o'clock Sunday evening, coming directly to Rev. Mr. Ewing's home, where I took supper and afterwards went with him to church. After church I returned home with Rev. Mr. Ewing and his wife and staid up and visited with him until 11 or 11:30 o'clock, when he showed me to my room and asked me if I would mind sleeping alone as they were going to sleep in the tent. I said 'no,' as I was intending to go to sleep at once. I undressed and went to bed, but was restless, being over tired. I heard a noise outside like a windmill and opened the door to the balcony, stood outside on the balcony to see what the noise was, but found nothing. Then I came back and shut the door and tried to sleep, but could not. My head was hot. I began to feel sick and wanted to get a walk so I dressed and went outside. I went down stairs to the front door and left the house by the front door.

"I walked across to the Presbyterian church. I did not intend to go any further, but my mind was working on a sermon, on a text called 'Slay Utterly.' As I had been hearing and reading sermons on that text and a voice said 'Go on,' and I went on, because I was in the grip of something that I did not understand. I felt God wanted me to 'slay utterly,' and I did not know where I was going or where I was. I got down near the end of the street and saw a shadow on the side of the house going from the back to the front and God told me to follow that shadow. I walked on a little bit further, still thinking about my sermon, and waited to know where that shadow began.

"I went hunting the shadow back of the house. I did not know who lived there but I kept on hearing that voice, 'Slay Utterly.' I said, 'Yes Lord, I will.' Was walking around in the darkness around the house, trying to find that shadow and accidentally saw an ax. I pickel it up and went to where the shadow went, for God wanted me to follow that shadow. I went around toward the front door. The voice says, 'Go in. Do as I tell you, slay utterly.'

"I saw no light but I had to do as God told me and I dare not turn back because somebody was urging me on. I did not know whom. I did not know where I was. I went right ahead because I heard that voice and as soon as I got in the house some one whispered, 'Come up higher,' out of the bible and I went up a flight of stairs because I thought I was going up Jacob's ladder. I walked through the middle room onto the further room. I don't know what I went there for only I was driven by an impulse and a voice. I saw some children lying there. The Bible says 'suffer little children to come unto me,' and I said 'they are coming Lord.' Before I knew what I was doing I started sending those children somewhere I did not know and I had to do as God told me and 'Slay Utterly,' and so to obey God used the ax and did not realize where I was hitting them only I was trying to do what God wanted me to do.

"After killing the children I went into the room where the parents were and I don't remember which one of them I struck first as my head was all wrong and I kept hearing voices. I 'slayed utterly,' by using the ax. Led by this impulse that I did not seem able to control.

"I then went down stairs and wanted to lay down and rest and saw a room and went in, not knowing who was there but found two children in bed and God said 'more work yet.' Before I knew what I was doing I continued to find sacrifices by killing these two children with the ax as I had to offer blood sacrifices.

"To the best of my memory I left the ax in the house and returned to the Ewing home and went back to bed, and I got up in the morning and caught the 5:19 train for Macedonia, arriving home about 7:30 a. m."

"LYN GEORGE J. KELLY."

"Subscribed and sworn to before me this thirty-first day of August, 1917.

"LYN J. IRWIN,"
"Clerk of district court."

Defense Begins

The state here rested the case, and Mrs. W. J. Ewing was the first witness introduced by the defense. Mrs. Ewing is the wife of the Rev. W. J. Ewing, pastor of the Presbyterian church at Deep River, Ia., and until several weeks ago pastor of the Presbyterian church at Villisca for six years. Mrs. Ewing said that Kelly arrived at their home about 6:30 June 9, 1912. She said Kelly attended the young people's meeting in the church that night with her husband. She declared she was well acquainted with the Moore family and knew the Stillinger girls. Kelly sat in a back seat on the south side of the church during the children's day exercises. Joe Moore occupied a seat in the rear of the church on the north side of the church, she said. The Rev. Kelly and the members of her family left the church about 9:45 o'clock. She declared that Kelly was shown to his room about 11 o'clock. He was given an alarm clock by Mr. Ewing; that the Rev. Kelly was dressed in a Prince Albert black suit that night; also that he wore a white shirt and colar and had a traveling bag. Witness said it was very dark and there were no street lights in Villisca that night.

Wintess said that her little daughter was sick that night and that she was up about 12:30 o'clock and several times after that to give the child medicine. She said she did not notice any one up and about the house; that she heard of the tragedy about 8:30 o'clock the next morning. Mrs. Ewing said she made up the bed in which Kelly slept Tuesday, June 11, and that it looked like it had been occupied. The witness said she never knew of Kelly's having been in Villisca before this time.

On cross examination Mrs. Ewing declared Kelly returned to Villisca several weeks later, and occupied the same room in the Ewing residence.

The Rev. W. J. Ewing was called and corroborated the testimony of his wife.

Watch repairing of all kinds promptly done and done right. S. M. Jolliffe, jeweler.—Adv.

Don't Forget the Date

On October 15th Iowa can settle the liquor question in this state for all time.

GET IN AT THE FINISH

Take your neighbor to the Polls when October 15th arrives.

AK-SAR-BEN FALL JUBILEE

OMAHA SEPT. 26 to OCT. 6, 1917

Ten Days of Innocent Hilarity in which Every Loyal Citizen is Interested

ELECTRIC PARADE—Wed. Evening, Oct. 3 "Triumph of Democracy."

AFTERNOON PARADE—Thurs. Oct. 4, "World's Liberty Parade."

Thursday Evening, from 8 to 10, at Rourke's Base Ball Park, will be shown Ak-Sar-Ben's Big Military Fireworks Spectacle.

Coronation Ball—Friday Evening, October 5, 1917.

National Swine Exhibit—1 week, beginning Oct. 3.

Ak-Sar-Ben never wearies, its joys are always new. The snappy fall days are Nature's tribute to the Festival Spirit which Samson decrees shall reign once each year for this short time.

Wortham's Big Carnival Every Day, 11 to 11

Information Bureau for Hotel Accommodations.

Closing Out Sale of Dairy Stock

As I have decided to quit the dairy business I will sell at public auction at the Lloyd Dairy, 1 mile east and ½ mile south of Red Oak Standpipe, on

Tuesday, October 2d

The following stock, most of which is of my own breeding. Sale starts at 1 o'clock.

50 Head of Dairy Cattle

Jerseys, Holsteins and Shorthorns

39 head of cows, ranging from 2 to 8 years. One thoroughbred Jersey bull, 3 yrs. old. 13 heifers, 2-year-olds, fresh this fall. 12 Heifers, 1-year-olds. 10 calves less than 6 months old. One 2-yr.-old Poland China Boar, registered; dam is Orange Girl. Sire: Chief Price Again the 2d. 1 sow, 3 yrs. old; dam Will's Lady Wonder; sire: Chief Price Again the 2nd. 4 sows, 2 yrs. old; dam: Wills Farm Wonder; sire: Longfellow Special. One gelding, 7 yrs. old. 3-Unit Sharpels mechanical milker in good condition.

Terms—Cash or bankable note. Hot Lunch at Noon.

C. T. Lloyd, - Owner

R. M. Adkins, Auctioneer. Wm. Apple, Clerk.

CLOSING OUT SALE

As I have been called for army service, I will sell all my personal property at my residence better known as the Wm. Fudge farm, 11½ miles southwest of Corning, 4½ miles northeast of Guss, and 10 miles northwest of Gravity, on

Thursday, Sept. 27th

Commencing at 11:30 o'clock

50 HIGH GRADE SHORTHORN CATTLE

15 head of 3-year-old wet cows, extra good quality; some have been milked. 10 good, young, hand-milked cows, all young. 12 good calves. 10 head of short yearlings, steers and heifers mixed. 1 good, pure bred Shorthorn bull, 2 years old, recorded.

54 HEAD OF HOGS

8 good Duroc-Jersey brood sows. 45 spring shoats. 1 Duroc-Jersey boar, 2 years old, pedigreed. These are all healthy and are cholera immune.

7 HEAD OF HORSES

6 head of good work horses. 1 suckling colt.

MISCELLANEOUS

1200 bushels good, heavy, bright oats. 65 or 70 acres of good corn in field in five different pieces; this corn is good, and almost all out of the way of frost. 20 tons of hay. 1 stack of straw.

LUNCH AND COLD DRINKS by Mahr & Pratt

Terms of Sale—12 months time will be given, purchaser giving bankable note bearing 8 per cent interest from date. No property to be removed until settled for.

WILBUR FUDGE, Owner

E. B. Piper, Auctioneer. C. E. Okey, Clerk.